

25CHCV01647 25CHCV01647

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MOTION TO FILE

RECORDS UNDER SEAL

Motion filed on June 12, 2026.

MOVING PARTY: Plaintiff Ramiro Tamayo

RESPONDING PARTY: Defendants Starbucks Corporation, Jannifer Ujueta, Hatzhiry Martinez, and Michelle Rodriguez

NOTICE: OK.

RELIEF REQUESTED: Plaintiff Ramiro Tamayo seeks an order sealing the Conditionally Sealed Evidence Compendium, Volume 2, containing SA-REF A and SA-REF B, and the unredacted Memorandum of Points and Authorities, Separate Statement of Undisputed Material Facts, and Declaration of Ramiro Tamayo in support of his Motion for Summary Adjudication to the extent those papers quote, summarize, or disclose information from SA-REF A or SA-REF B.

RULING: Denied without prejudice.

BACKGROUND

On May 13, 2025, Plaintiff Ramiro Tamayo (Plaintiff) filed the Complaint against Defendants Starbucks Corporation, Jannifer Ujueta, Hatzhiry Martinez, and Michelle Rodriguez (Defendants). On June 12, 2026, Plaintiff filed the instant Motion to File Records Under Seal. On August 25, 2026, Defendants filed a Non-Opposition.

DISCUSSION

Unless confidentiality is required by law, court records are presumed to be open to the public, pursuant to a potent “open court” policy undergirded by the First Amendment and favoring the public nature of court proceedings. (Cal. Rules of Court, rule 2.550(c); see *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1199-10.) Consequently, pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties; filing under seal requires a court order.^[1] (Cal. Rules of Court, rule 2.551(a); see *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 888.)

In order to issue a sealing order, the Court must make expressly find that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d)(1)-(4), (e); see *McGuan v. Endovascular Techs., Inc.* (2010) 182 Cal.App.4th 974, 988.) The constitutional policy favoring disclosure must be balanced against other factors, e.g., privacy rights. (See *People v. Jackson* (2005) 128 Cal.App.4th 1009, 1026-27.) The Court acts within its discretion in making factual determinations on a motion to seal. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285.)

A sealing order must be sought by means of a motion (or application) and accompanied by a memorandum of points and authorities, as well as evidence and testimony containing facts sufficient to justify the mandatory findings required to support a sealing order. (Cal. Rules of Court, rules 2.550(d) and 2.551(b).) The proponent of the sealing order must also conditionally lodge the unredacted matter to be sealed with the court. (*Id.*,

rule 2.551(b)(4).)

Here, Plaintiff seeks to seal SA-REF A, consisting of Starbucks production excerpts; SA-REF B, consisting of Defendants' discovery responses; and portions of Plaintiff's unredacted summary adjudication papers that quote, summarize, or disclose information from those materials. Although SA-REF A and SA-REF B are discovery materials, Plaintiff seeks to submit them in support of his Motion for Summary Adjudication, not in connection with a discovery motion. Accordingly, the discovery-motion exception does not apply, and Plaintiff must comply with California Rules of Court, rules 2.550 and 2.551.

Plaintiff filed a Notice of Lodgment of Conditionally Sealed Records and states in the moving papers that the unredacted materials were conditionally lodged. However, the Court has not received the records sought to be sealed. Rule 2.551(b)(4) requires the proponent of a sealing order to conditionally lodge the unredacted matter to be sealed with the Court. Without the records, the Court cannot review the materials and make the express findings required by rule 2.550(d).

Additionally, Plaintiff's declaration identifies the materials by general categories, including internal incident-reporting, partner-safety, customer-restriction, threat-assessment, internal operations, and customer-handling materials. However, Plaintiff's declaration does not contain facts sufficient for the Court to determine how the findings required by rule 2.550(d) apply to the particular records or portions of records Plaintiff seeks to seal. Specifically, the declaration does not provide sufficient facts for the Court to determine what particular information warrants protection, what prejudice would result from disclosure of that information, or why sealing the particular records or portions sought is narrowly tailored and no less restrictive means exist.

Accordingly, the Motion is denied without prejudice.

CONCLUSION

Plaintiff Ramiro Tamayo's Motion to File Records Under Seal is DENIED WITHOUT PREJUDICE.

Documents filed or lodged in connection with a discovery motion do not require compliance with California Rules of Court, rule 2.550. (See *id.*, rule 2.550(a)(2).)